

Conflict of Interest Policy

Project High-Lvl · v4 · Adopted May 2026 (supersedes prior policy)

Article 1 — Purpose

The purpose of this conflict of interest policy is to protect the interests of Project High-Lvl (the "Organization") when it is contemplating entering into a transaction or arrangement that might benefit the private interest of an officer or director, or might result in a possible excess benefit transaction. This policy is intended to supplement, not replace, applicable state and federal laws governing conflicts of interest applicable to nonprofit and charitable organizations.

Article 2 — Definitions

1. **Interested Person.** Any director, officer, or member of a committee with governing board-delegated powers who has a direct or indirect financial interest, as defined below.
2. **Financial Interest.** A person has a financial interest if, directly or indirectly through business, investment, or family, the person has (a) an ownership or investment interest in any entity with which the Organization has a transaction or arrangement; (b) a compensation arrangement with the Organization or with any entity or individual with which the Organization has a transaction or arrangement; or (c) a potential ownership, investment, or compensation interest with any entity or individual with which the Organization is negotiating a transaction or arrangement. A financial interest is not necessarily a conflict of interest; a conflict exists only if the Board decides one exists under Article 3.

Article 3 — Procedures

1. **Duty to Disclose.** An interested person must disclose the existence of the financial interest and be given the opportunity to disclose all material facts to the Board and any committee considering the proposed transaction or arrangement.
2. **Recusal.** After disclosure and any discussion, the interested person shall leave the meeting during the discussion of, and the vote on, the transaction or arrangement. The interested person shall not be counted in determining the quorum for that vote and shall not vote on the matter.

3. **Determining Whether a Conflict Exists.** The remaining Board or committee members shall decide if a conflict of interest exists.
4. **Procedures for Addressing the Conflict.** The chair may appoint a disinterested person or committee to investigate alternatives to the proposed transaction. After exercising due diligence, the Board shall determine whether the Organization can obtain a more advantageous transaction or arrangement that would not give rise to a conflict. If not, the Board shall determine by a majority vote of the disinterested directors whether the transaction or arrangement is in the Organization's best interest, for its own benefit, and whether it is fair and reasonable, and shall make its decision as to whether to enter into the transaction.

Article 4 — Records of Proceedings

The minutes of the Board and all committees with board-delegated powers shall contain: the names of the persons who disclosed or otherwise were found to have a financial interest, the nature of the interest, any action taken to determine whether a conflict of interest was present, and the Board's decision as to whether a conflict of interest in fact existed; and the names of the persons present for discussions and votes, the content of the discussion including any alternatives, and a record of any votes taken.

Article 5 — Compensation

1. A voting member of the Board who receives compensation, directly or indirectly, from the Organization for services is precluded from voting on matters pertaining to that member's compensation.
2. No voting member of any committee whose jurisdiction includes compensation matters and who receives compensation from the Organization may vote on matters pertaining to that member's compensation.
3. Compensation of officers, directors, and key persons shall be approved in advance by the disinterested members of the Board, using data as to comparable compensation for similarly qualified persons in similar positions and comparable organizations, with the basis for the determination recorded in the minutes.

Article 6 — Annual Statements

Each director, officer, and member of a committee with board-delegated powers shall annually sign a statement affirming that the person has received a copy of this policy, has read and understands it, has agreed to comply with it, and understands that the Organization is a

charitable organization that must engage primarily in activities which accomplish its tax-exempt purposes.

Article 7 — Periodic Reviews

To ensure the Organization operates in a manner consistent with its charitable purposes and does not engage in activities that could jeopardize its tax-exempt status, periodic reviews shall be conducted covering, at a minimum: whether compensation arrangements and benefits are reasonable and the result of arm's-length bargaining; and whether partnerships, joint ventures, and arrangements with other organizations (including any transaction with Culture Silicon or other entities in which a director or officer has an interest) conform to the Organization's written policies, are properly recorded, reflect reasonable payments for goods and services, further charitable purposes, and do not result in inurement or impermissible private benefit.

Article 8 — Violations

If the Board has reasonable cause to believe a member has failed to disclose actual or possible conflicts of interest, it shall inform the member of the basis for such belief and afford the member an opportunity to explain. If, after hearing the response and making further investigation as warranted, the Board determines the member has failed to disclose an actual or possible conflict of interest, it shall take appropriate disciplinary and corrective action.

Adopted by the Board of Directors of Project High-Lvl on 6/15/26, 2026.



Jibrial Muhammad, President



Amechi Okechukwu, Secretary & Treasurer



Steve Jones, Director